

P O R T E R | S C O T T

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Attorneys for Defendant,

CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

05/01/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

NOTICE OF ENTRY OF ORDER

CSAA INSURANCE EXCHANGE; DOES

1 through 50,

Defendants.

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

_____/

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1 PLEASE TAKE NOTICE that on April 30, 2026, the above-entitled Court entered an Order
2 DENYING Plaintiff's Motion for Leave to File a Second Amended Complaint; Request for Order
3 Clarifying Amendment/Demurrer Sequence. A true and correct copy of the Order is attached hereto
4 as **Exhibit A** and served herewith.

5
6
7 Dated: May 1, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE

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EXHIBIT A

1 **P O R T E R | S C O T T**

2 A PROFESSIONAL CORPORATION

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11 Attorneys for Defendant,

12 CSAA INSURANCE EXCHANGE

FILED
Superior Court of California
County of San Francisco

APR 30 2026

CLERK OF THE COURT

BY: *[Signature]*
Deputy Clerk

13 **SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO**

14 FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

15 Plaintiff,

16 v.

17 CSAA INSURANCE EXCHANGE; DOES
18 1 through 50,

19 Defendants.

incl
~~PROPOSED~~ ORDER ON PLAINTIFF'S
MOTION FOR LEAVE TO FILE
SECOND AMENDED COMPLAINT;
REQUEST FOR ORDER CLARIFYING
AMENDMENT/DEMURRER
SEQUENCE

Hearing: April 30, 2026

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

20 ///

incl
~~PROPOSED~~ ORDER ON PLAINTIFF'S MOTION FOR LEAVE TO FILE SECOND AMENDED
COMPLAINT; REQUEST FOR ORDER CLARIFYING AMENDMENT/DEMURRER SEQUENCE

1 Plaintiff Franciscus Dylan Rosario's Motion For Leave To File Second Amended
2 Complaint; Request For Order Clarifying Amendment/Demurrer Sequence is DENIED.

3 Plaintiff's request for judicial notice filed two days before the hearing is denied.

4 Plaintiff has not demonstrated he timely filed or served his motion. (See Code of Civil
5 Procedure section 1005(b) [motion must be filed and served 16 court days before hearing]; Code of
6 Civil Procedure section 1013(a) [service by mail where place of address and place of mailing are
7 within State of adds 5 calendar days to the period of notice]; see Code of Civil Procedure section
8 1010.6(a)(3)(B) [service by email adds two court days to "any period of notice"]; Code of Civil
9 Procedure section 1013(e) [service by fax only by agreement and adds two court days to "any period
10 of notice"].) Plaintiff filed his motion on 4/16/2026, which is not 16 court days before 4/30/2026,
11 the hearing date noticed. Plaintiff's disregard for the rules is not excused.

12 The motion fails on the merits, as well. "The court may, in furtherance of justice, and on any
13 terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking
14 out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any
15 other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may
16 likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an
17 amendment to any pleading or proceeding in other particulars; and may upon like terms allow an
18 answer to be made after the time limited by this code." (Code Civil Procedure section 473(a)(1).)
19 "[T]here is a strong policy in favor of liberal allowance of amendments." (Foxborough v. Van Atta
20 (1994) 26 Cal.App.4th 217, 230.) "Great liberality is indulged in matters of amendment to the end
21 that lawsuits may be determined upon their merits." (Desny v. Wilder (1956) 46 Cal.2d 715, 751.)

22 Defendant has established prejudice sufficient to support denial of Plaintiff's motion, even
23 under the liberal amendment rule. On April 9, 2026, Defendant here filed as a responsive pleading
24 a special motion to strike under the anti-SLAPP statute (Code of Civil Procedure section 425.16).
25 Granting Plaintiff leave to amend his complaint would frustrate Defendant's right to have its
26 already-filed special motion to strike adjudicated. "There is a history of case law setting forth the
27 rule that a party cannot amend around a SLAPP motion. (City of Colton v. Singletary (2012) 206
28 Cal.App.4th 751, 775; citing Law Offices of Andrew L. Ellis v. Yang (2009) 178 Cal.App.4th 869,

1 880; Sylmar Air Conditioning v. Pueblo Contracting Services(2004)122 Cal.App.4th 1049, 1054–
2 1055; Simmons v. Allstate Ins. Co. (2001) 92 Cal.App.4th 1068, 1073–1074.) “We are not inclined
3 to create instability in this rule by permitting a plaintiff to amend its pleading.” (City of Colton,
4 supra, 206 Cal.App.4th at 775.) “A plaintiff cannot avoid [an anti-]SLAPP motion by amending the
5 complaint.” (Jackson v. Mayweather (2017) 10 Cal.App.5th 1240, 1263; citing Hansen v. California
6 Department of Corrections & Rehabilitation (2008) 171 Cal.App.4th 1537, 1547; accord, Contreras
7 v. Dowling (2016) 4 Cal.App.5th 774, 791, “[a] plaintiff ... may not seek to subvert or avoid a
8 ruling on an anti-SLAPP motion by amending the challenged complaint ... in response to the
9 motion”]; Sylmar Air Conditioning, supra, 122 Cal.App.4th at p. 1055; see Simmons, supra, 92
10 Cal.App.4th at 1073, [section 425.16 makes no provision for amending the complaint; “we reject
11 the notion that such a right should be implied”].) As such, Plaintiff’s motion for leave to file a
12 Second Amended Complaint is denied.

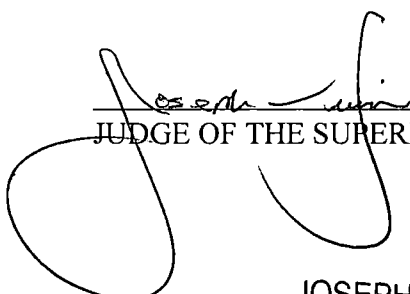
13 ~~For the 9:00 a.m. calendar, all attorneys and parties may appear in Department 302 remotely~~
14 ~~or in person. Remote hearings will be conducted by videoconference using Zoom. (Dept. 302 Zoom~~
15 ~~ID 160 409 7690; Passcode 516287.) To appear remotely at the hearing, go to the court’s website at~~
16 ~~sfsuperiorcourt.org under “Online Services,” navigate to “Tentative Rulings,” and click on the~~
17 ~~appropriate link, or dial the corresponding phone number.~~

18 Any party who contests a tentative ruling must send an email to contestdept302tr@sftc.org
19 with a copy to all other parties by 4pm stating, without argument, the portion(s) of the tentative
20 ruling that the party contests. The subject line of the email shall include the line number, case name
21 and case number. The text of the email shall include the name and contact information, including
22 email address, of the attorney or party who will appear at the hearing. Counsel for the prevailing
23 party is required to prepare a proposed order which repeats verbatim the substantive portion of the
24 tentative ruling and must email it to contestdept302tr@sftc.org prior to the hearing even if the
25 tentative ruling is not contested.

26 The court no longer provides a court reporter in the Law & Motion Department. Parties may
27 retain their own reporter, who may appear in the courtroom or remotely. A retained reporter must
28 be a California certified court reporter (CSR), for only a CSR’s transcript may be used in California

1 courts. If a CSR is being retained, include in your email all of the following: their name, CSR and
2 telephone numbers, and their individual work email address.

3
4 Dated: April 30, 2026

5 
JUDGE OF THE SUPERIOR COURT

8 JOSEPH M. QUINN
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3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On May 1, 2026, I served the following document: **NOTICE OF ENTRY OF ORDER**

7 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
8	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
9	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
10	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

11 Addressed as follows:

12 **PLAINTIFF, IN PRO PER**

13 Franciscus Dylan Rosario
14 7624 Melody Drive
15 Rohnert Park, CA 94928
16 soltrinox@gmail.com

17 I declare under penalty of perjury under the laws of the State of California that the foregoing
18 is true and correct. Executed on Sacramento, California on May 1, 2026.

19 *Serena Blithe*
20 Serena Blithe